

Bhagvan Yadav @ Bhagvan Singh Yadav v. State of U.P. and others

Allahabad High Court · Division Bench · 2 January 2023 · WRIT-C No. 36271 of 2022 · **Writ disposed; petitioner relegated to clause 6.8.**

HEADNOTE

A writ challenging a Tehsildar recovery citation and the licensee's recovery certificate in a matter of alleged theft and unauthorized use of electricity is not decided on the merits. The Uttar Pradesh Electricity Supply Code, 2005 is a self-contained code with a full-fledged mechanism; the consumer has an efficacious remedy to press relief under clause 6.8. The petition was disposed of with a week's time to take that recourse and a hope that the competent authority would proceed strictly in accordance with law. A later correction substituted 'file an appeal under provision' with 'press the relief under 6.8 of the Electricity Supply Code'.

FACTUAL SUMMARY

Bhagvan Yadav challenged a Tehsildar recovery citation of 17 October 2021 (Kasimabad, Ghazipur) and an Executive Engineer, EDD-I, UPPCL, Ghazipur recovery certificate of 22 October 2020. The Corporation said the demand arose from theft and unauthorized use of electricity. A correction order of 12 May 2023 substituted, in the 2 January 2023 order, 'file an appeal under provision' with 'press the relief under 6.8 of the Electricity Supply Code.'

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

alternate-remedy-clause-6.8

HOLDING

Where a writ challenges a recovery citation and recovery certificate arising from alleged theft and unauthorized use of electricity, the Uttar Pradesh Electricity Supply Code, 2005 is a self-contained code with a full-fledged mechanism. The consumer has an efficacious remedy to press relief under clause 6.8 (as later corrected from 'file an appeal') and is given a week's time to take that recourse; the writ is disposed of, the competent authority being expected to proceed strictly in accordance with law. ¶ 4

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against a recovery citation and certificate for alleged theft and unauthorized use was not examined on the merits; the petitioner was left to press relief under clause 6.8 within a week. ¶ 4

assessment-6.8-alternate-remedy The Court treated the Supply Code as a self-contained mechanism and relegated the consumer to clause 6.8 rather than deciding the recovery. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 17.10.2021 AND THE RECOVERY CERTIFICATE DATED 22.10.2020

¶ 4-5

NOT DECIDED — WHETHER THE DEMAND IS GOVERNED BY CLAUSE 6.8 (UNAUTHORIZED USE) OR CLAUSES 8.1–8.2 (THEFT)

The Corporation and the Court treated theft and unauthorized use together under clause 6.8 without deciding any Chapter 8 overlay. ¶ 3-4

